

2014 SCC OnLine All 6769

(BEFORE SANJAY MISRA AND ANANT KUMAR, JJ.)

Chandrapal Petitioner

v.

Dakshinanchal Vidyut Vitran Nigam Ltd. & 4

Others Respondents

Counsel for Petitioner:- Kr. Hans Pratap Singh

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

Writ - C No. 22075 of 2014

Decided on May 14, 2014

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri. Kr. Hans Pratap Singh, learned counsel for the petitioner, learned standing counsel for the State-respondent and Sri. Baleshwar Chaturvedi, learned counsel for respondents no. 1, 2, 3 and 4.

The petitioner has come up in this writ petition assailing the demand notice dated 18.2.2014 issued under Section 3 of the Uttar Pradesh Government Electrical Undertaking (Dues Recovery) Act, 1958 (hereinafter referred to as 'the Act, 1958') as also the bill dated 18.3.2013.

Learned counsel for the petitioner has submitted that earlier the petitioner had been issued erroneous bill which he has disputed and also had disputed the arrears claimed whereupon the petitioner had filed Writ Petition No. 23342 of 2010, *Chandrapal v. U.P. Power Corporation*. The aforesaid writ petition was decided on 28.4.2010 requiring the petitioner to pursue his remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Learned counsel states that the petitioner thereafter filed his representation dated 17.5.2010 to be considered under the said provision of the Electricity Supply Code but no decision has been taken on the same so far and the impugned notice and demand has been raised against the petitioner regarding the arrears.

Learned counsel for the respondents was required to obtain instructions in this regard.

Sri Baleshwar Chaturvedi, learned counsel for the respondents, on the basis of instructions, has submitted that the petitioner has not deposited the arrears till date. His instructions are silent on whether the application of the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005 dated 17.5.2010 has been decided or not.

In view of the aforesaid circumstances, we find that the petitioner was pursuing his remedy under the provisions of the U.P. Electricity Supply Code, 2005 in pursuance of the order dated 28.4.2010 passed in earlier writ petition but the respondent-Corporation appears not to have taken any decision on such application made by the petitioner on 17.5.2010 under the provisions of U.P. Electricity Supply Code, 2005 and as such, issuing fresh demand for the arrears and notice under Section 3 of the Act, 1958 appear to be an arbitrary action taken by the respondent-Corporation.

In view of the aforesaid circumstances, we dispose of this writ petition by providing that the application of the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005 dated 17.5.2010 should be decided by the competent authority of the Corporation within a period of one month from the date a certified copy of this order is served by the petitioner on respondent no. 2-Executive Engineer, Electricity Distribution Division, Hamirpur.

Till the decision is taken by respondent no. 2, the demand under Section 3 of the Act, 1958 shall be kept in abeyance and shall abide by the decision so taken by respondent no. 2. Upon a decision being taken, the order be provided to the petitioner forthwith.

No order as to costs.

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